

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DAVID GILYARD,

Plaintiff,

- against -

THE CITY OF NEW YORK, CAPTAIN
GUTIERREZ, P.O. NICKEY and JOHN
DOES "1-3", The names being
fictitious and identity unknown,

Defendants.
-----X

Index No.

Plaintiff designates
New York County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

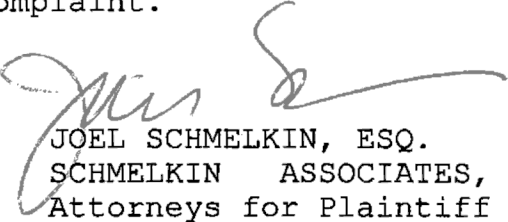
Plaintiff resides at:
141 W. 111th St. (Apt. 1RW)
New York, NY 10026

County of New York

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 30, 2021


JOEL SCHMELKIN, ESQ.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff
DAVID GILYARD
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

THE CITY OF NEW YORK, 100 Church Street, New York, N.Y. 10007
CAPTAIN GUTIERREZ, c/o 28th Precinct, 2271-89 Frederick Douglass Blvd,
New York, NY 10027
P.O. NICKEY, c/o 28th Precinct, 2271-89 Frederick Douglass Blvd,
New York, NY 10027

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DAVID GILYARD,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, CAPTAIN
GUTIERREZ, P.O. NICKEY and "JOHN
DOES "1-3", the names being,
fictitious and identity unknown,

Defendants.

-----X

Plaintiff, **DAVID GILYARD**, complaining of the
defendants, by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby
sets forth and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT/IDENTIFICATION OF PARTIES

1. That, at all times hereinafter mentioned, and on
May 3, 2020, the plaintiff, **DAVID GILYARD**, was and still is a
resident of the County of New York, City and State of New York.

2. That, at all times hereinafter mentioned, and on
May 3, 2020, the defendant, **THE CITY OF NEW YORK**, (hereinafter
referred to as "**THE CITY**") was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
May 3, 2020, the defendant, **CAPTAIN GUTIERREZ**, (hereinafter
referred to as "**GUTIERREZ**"), was and still is a resident of the
City and State of New York.

4. That, at all times hereinafter mentioned, and on May 3, 2020, the defendant, **P.O. NICKEY**, (hereinafter referred to as "**NICKEY**"), was and still is a resident of the City and State of New York.

5. That, at all times hereinafter mentioned, and on May 3, 2020, the defendant, "**JOHN DOES 1-3**", the names being **fictitious and identity unknown**, (hereinafter referred to as "**DOES**"), were and still are a resident of the City and State of New York.

6. That, the plaintiff, **DAVID GILYARD**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim and Supplemental Notice of Claim were served on July 10, 2020 and November 5, 2020, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **DAVID GILYARD**, testified at an oral examination pursuant to the General Municipal Law on January 28, 2021; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

7. That at all times hereinafter mentioned, and on May 3, 2020, plaintiff **DAVID GILYARD** was present on 111th Street, between 7th Avenue and St. Nicholas Avenue, in the County of New York, City and State of New York.

8. That the plaintiff **DAVID GILYARD** intended to travel to the County of Bronx, City and State of New York by taking a subway train; yet never reached the destination.

9. That the plaintiff **DAVID GILYARD** saw police officers, and or other agents, servants, and/or employees of the defendant **THE CITY** at the aforementioned location attempting to clear people from the sidewalk.

10. That, the plaintiff **DAVID GILYARD** saw the aforementioned police officers, and other agents, servants, and employees of the defendant **THE CITY** arresting and assaulting people as a crowd gathered thereat.

11. That the plaintiff **DAVID GILYARD** had momentarily stopped, due to his not being able to pass, due to the aforementioned crowd that had gathered.

12. That there came a time that the plaintiff **DAVID GILYARD** was able to walk past aforementioned crowd, and while doing such, he saw a police officer attempting to touch the person of the plaintiff **DAVID GILYARD**.

13. That plaintiff **DAVID GILYARD** was grabbed by the aforementioned police officers and/or other agents, servants, and employees of the defendant **THE CITY**, on both of his arms, and was held behind his back, by two other police officers, and/or other agents, servants, and/or employees of the defendant **THE CITY**.

14. That the plaintiff **DAVID GILYARD** asked the aforementioned police officers, and/or agents, servants, and/or employees of the defendant **THE CITY** why he was being grabbed and beaten without justification, and did not receive a response.

15. That the plaintiff **DAVID GILYARD** asked the aforementioned police officers and/or other agents, servants, and/or employees of the defendant **THE CITY** why he was being assaulted, yet did not receive a response; nor did the plaintiff **DAVID GILYARD** consent to the behavior of the defendants.

16. That the plaintiff **DAVID GILYARD** was thereafter approached by four other police officers, and/or other agents, servants and/or employees of the defendant **THE CITY**, who had aggressively twisted his arms, from behind his back, pinned him against the trunk of a car, which caused him to be in great physical pain, and he was not told why he was being arrested, nor assaulted, which was done without probable cause, without reason cause and without justification.

17. that the plaintiff **DAVID GILYARD** was placed in a police vehicle and taken to the 28th precinct, against his will, without probable cause, without reasonable cause and without justification, whereby he was frisked; as well as handcuffed for no apparent reason; nor was he given his rights, afforded to him by the United States Constitution, nor the Constitution of the State of New York, or other rights, known as his "Miranda rights".

18. that the plaintiff **DAVID GILYARD** went to court on a later date, and was told that the case was closed, dismissed and resolved in his favor.

19. That as a result of the foregoing, the plaintiff **DAVID GILYARD** was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief his injuries are permanent in nature and effect.

AS AND FOR A FIRST CAUSE OF ACTION
(Assault and Battery)

20. That, the plaintiff, **DAVID GILYARD** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 19 with the same force and effect as if hereinafter more fully set forth at length herein.

21. That, on May 3, 2020, the plaintiff, **DAVID GILYARD** was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

22. That, the plaintiff, **DAVID GILYARD**, was assaulted/battered without justification and without cause and without excuse.

23. That, the assault/battery took place at 111th Street, between 7th Avenue and St. Nicholas Avenue, County of New York, City and State of New York and other locations wherein the

plaintiff, **DAVID GILYARD** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

24. That, at all times hereinafter mentioned and on May 3, 2020, and for sometime prior thereto, defendant, **GUTIERREZ**, was a New York City police officer, and/or agent, servant and/or employee of the defendant **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

25. That, at all times hereinafter mentioned and on May 3, 2020, and for sometime prior thereto, defendant, **NICKEY**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

26. That, at all times hereinafter mentioned and on May 3, 2020, and for sometime prior thereto, defendant, **DOES**, were New York City police officers, and/or agents, servants and/or employees of **THE CITY**, working in the scope and course of their employment as New York City Police Officers, and were employed by the defendant, **THE CITY**.

27. That, the aforementioned assault and battery of the plaintiff, **DAVID GILYARD**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of

the employment with the defendant **THE CITY**.

28. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

29. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

30. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

31. That, the plaintiff, **DAVID GILYARD**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 30 with the same force and effect as if hereinafter more fully set forth at length herein.

32. That, all of the aforementioned acts, committed by

police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

33. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **GUTIERREZ**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

35. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **NICKEY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

36. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of

the defendant, **DOES** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

37. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **GUTIERREZ**, who was employed by the defendant, **THE CITY**.

38. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **NICKEY**, who was employed by the defendant, **THE CITY**.

39. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOES**, who was employed by the defendant, **THE CITY**.

40. That, by reason of the foregoing, the plaintiff,

DAVID GILYARD, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

41. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

42. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

(False Arrest and
False Imprisonment)

43. That the plaintiff, **DAVID GILYARD**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 42 with the same force and effect as if hereinafter more fully set forth at length herein.

44. That, on May 3, 2020, the plaintiff, **DAVID GILYARD**, was caused to be falsely arrested and falsely imprisoned without probable cause.

45. That, the plaintiff, **DAVID GILYARD**, was arrested without an arrest warrant.

46. That, the false arrest/false imprisonment took place at 111th Street, between 7th Avenue and St. Nicholas Avenue, in the County of New York, City and State of New York and thereafter continuing at other locations wherein the plaintiff, **DAVID GILYARD** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

47. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVID GILYARD** , was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

48. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVID GILYARD** , was carried out by defendant, **GUTIERREZ**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

49. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVID GILYARD** , was carried out by defendant, **NICKEY**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

50. That, the aforementioned false arrest and false

imprisonment of the plaintiff, **DAVID GILYARD** , was carried out by defendant, **DOES** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

51. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

52. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

53. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD** , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION
(Malicious Prosecution)

54. The plaintiff, **DAVID GILYARD**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 53, with the same force and effect as if

hereinafter more fully set forth at length herein.

55. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVID GILYARD**, was caused due to a malicious prosecution of the plaintiff, **DAVID GILYARD**, without cause, without reasonable cause, and without color of the law.

56. That, the arresting and investigating police, who were police officers, and/or other agents, servants or were other employees of the defendant, **THE CITY OF NEW YORK**, failed to make a proper and through investigation of the facts, failed to make proper inquiries resulting in the false arrest and false imprisonment of the plaintiff, **DAVID GILYARD**, was maliciously prosecuted without probable cause, without reasonable cause, and without color of the law.

57. That, upon information and belief, all criminal charges against the plaintiff, **DAVID GILYARD**, were ultimately dismissed.

58. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

59. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving

intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others.

60. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

61. The plaintiff, **DAVID GILYARD**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 60, with the same force and effect as if hereinafter more fully set forth at length herein.

62. That the plaintiff, **DAVID GILYARD** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

63. That at all times hereinafter mentioned, the defendant, **GUTIERREZ** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of

his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

64. That at all times hereinafter mentioned, the defendant, **NICKEY** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

65. That at all times hereinafter mentioned, the defendant, **DOES** were employed in their respective capacity by the defendant, **THE CITY** and was acting under the color of their official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

66. Defendant, **GUTIERREZ**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **GUTIERREZ** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their

employees or agents.

67. Defendant, **NICKEY**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **NICKEY** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

68. Defendants, **DOES**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants, **DOES** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

69. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **DAVID GILYARD** of the following rights, privileges and immunities secured to him by the Constitution of the United States

and of the State of New York: The right of plaintiff, **DAVID GILYARD** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **DAVID GILYARD** , to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **DAVID GILYARD** , not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

70. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

71. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

72. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

73. That the deprivation of plaintiff, **DAVID GILYARD's** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for

arresting individuals without probable cause.

74. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

75. That the detaining of plaintiff, **DAVID GILYARD** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

76. That the deprivation of plaintiff, **DAVID GILYARD's** Constitutional rights was the result of the defendant, **GUTIERREZ's** arrest of the plaintiff **DAVID GILYARD** without probable cause.

77. That the deprivation of plaintiff, **DAVID GILYARD's** Constitutional rights was the result of the defendant, **NICKEY's** arrest of the plaintiff **DAVID GILYARD** without probable cause.

78. That the deprivation of plaintiff, **DAVID GILYARD's** Constitutional rights was the result of the defendant, **DOES's** arrest of the plaintiff **DAVID GILYARD** without probable cause.

79. That the deprivation of plaintiff **DAVID GILYARD's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

80. That the deprivation of plaintiff, **DAVID GILYARD's** Constitutional rights was the result of the defendant, **GUTIERREZ's** use of excessive force.

81. That the deprivation of plaintiff, **DAVID GILYARD's**

Constitutional rights was the result of the defendant, **NICKEY's** use of excessive force.

82. That the deprivation of plaintiff, **DAVID GILYARD's** Constitutional rights was the result of the defendant, **DOES** use of excessive force.

83. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **DAVID GILYARD** .

84. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **DAVID GILYARD** was caused to have her civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

85. That, by reason of the foregoing, the plaintiff **DAVID GILYARD** was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

86. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

87. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION

(Negligent Infliction
of Emotional Distress)

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **DAVID GILYARD**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

90. The acts and conduct of the defendants were the

direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

91. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

93. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

94. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

95. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

96. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD**, has sustained damages in an amount in excess of

the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION

(Intentional Infliction
of Emotional Distress)

97. That the plaintiff, **DAVID GILYARD**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 96 with the same force and effect as if hereinafter more fully set forth at length herein.

98. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **DAVID GILYARD**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

99. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

100. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

101. Defendants were at all times agents, servants, and

employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

102. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

103. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

104. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

105. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Failure to Intervene)

106. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at

length herein.

107. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

108. Defendants failed to intervene to prevent the unlawful conduct described herein.

109. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

110. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

111. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

112. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities;

and, upon information and belief, his injuries are permanent in nature and effect.

114. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

115. As a result of the aforementioned conduct of defendants, plaintiff sustained personal injuries, including but not limited to emotional and psychological injuries.

116. That, by reason of the foregoing, the plaintiff, **DAVID GILYARD**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **DAVID GILYARD**, demands judgment against the defendants, on the First, Second, Third, Fourth, Fifth, Sixth, Seventh and Eighth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
April 30, 2021

Yours, etc.

A handwritten signature in black ink, appearing to read 'Joel Schmelkin', with a long horizontal flourish extending to the right.

Joel Schmelkin, Esq.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,

DAVID GILYARD

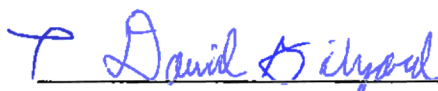
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NEW YORK) ss:

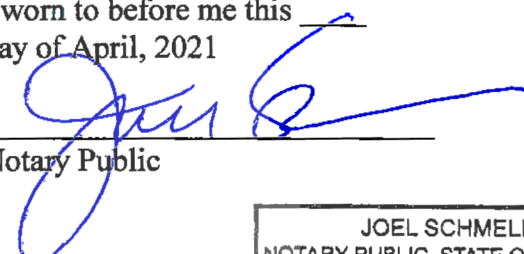
DAVID GILYARD, being duly sworn deposes and says:

I am the plaintiff in this action. I have read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and know its contents and the same are true to my knowledge and belief except as to matters therein stated to be alleged on information and belief and as to those matters I believe it to be true.



DAVID GILYARD

Sworn to before me this 30
day of April, 2021



Notary Public

JOEL SCHMELKIN
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 01SC4793278
Qualified in Nassau County
Commission Expires January 31, 2022

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DAVID GILYARD,

Plaintiff,

-against-

THE CITY OF NEW YORK, CAPTAIN
GUTIERREZ, P.O. NICKEY and
JOHN DOES "1-3", The names being
fictitious and identify unknown,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

David Gilyard

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: April 30, 2021

Signature

Print Signer's Name

IOEL SCHMELKIN, ESQ.

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone
30 VESEY STREET, 4TH FLOOR